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HUEY P. NEWTON: "THE D.A. HAS BRIBED THE PROSECUTION WITNESSES"

(Oakland, Calif.) - "I accuse the district attorney's office of criminality. I accuse it of the lowest form of criminality because they are supposed to represent the community as public officials."

At a press conference held two weeks before his retrial on the trumped-up Kathleen Smith murder case was scheduled to begin, Black Panther Party President Huey P. Newton charged that Alameda County District Attorney Lowell Jensen has "bribed and paid off" all the witnesses against the BPP founder in his desperation to convict him.

"The whole thing stinks of a deal," Huey said concerning the recent dismissal and reduction of serious felony charges against Mozell Mitchell, the pimp girlfriend of Crystal Grey, the "star" prosecution witness in the case.

Luke Ellis, co-counsel for the BPP leader, told the press that on



BPP President HUEY P. NEWTON (right) and co-counsel LUKE ELLIS at press conference.

June 21, Mitchell was allowed to plead guilty to voluntary manslaughter in connection with the

killing of a child in early 1978.

Grey, seeking to protect her lover, "confessed" to police in February of last year that she committed the shooting. Although the D.A.'s office subsequently learned that Grey had lied, she was never charged with perjury.

During the first trial, which ended in a mistrial on March 24 of this year with a vote of 10-2 for Huey's acquittal, Grey did not testify for the prosecution because the D.A. did not want her previous lie to protect Mitchell revealed in open court.

The D.A.'s office also dismissed two prior felony charges against Mitchell, who has a lengthy criminal record, and the "use a gun, go to prison" law. She will not be sentenced until sometime in August, well after Huey's trial begins, which is set for July 30.

Judge Stanley Golde, who formerly represented Mitchell while he was in private practice, presided over her recent case.

"They are all in cahoots," Huey said in referring to the conspiracy between the D.A.'s

office and Golde. "Reliable sources have told me that Golde was overheard saying at cocktail parties that he would 'hang me' if he presided over my case," the BPP president continued.

Golde was initially assigned to sit as judge in the first Smith trial, but the defense, exercising its right, immediately challenged him. Superior Court Judge Carl West Anderson subsequently presided over the trial.

The July 16 press conference preceded a court hearing at which Huey's attorneys sought the prosecution's compliance with a motion for discovery filed on July 5. The motion demanded that all relevant documents and information concerning inducements, benefits and payoffs offered to witnesses by the D.A.'s office and the Oakland Police Department to secure testimony against Huey be turned over to the defense.

The hearing was continued until July 24 because Deputy D.A. Thomas Orloff's response allegedly was not completed. Orloff succeeded in getting the hearing transferred to the courtroom of Judge Martin Pulich, who has presided over numerous discovery hearings in Huey's cases. Pulich is a longtime enemy of the BPP.

Ellis was also extremely critical of the special treatment given to Charles Lee Buie, the only real witness remaining against Huey.

Buie, an admitted dope dealer and pimp, has been in the federal Witness Protection Program. Attorney Ellis questioned why Buie has been allowed in the program since it is normally reserved for witnesses against organized crime.

"Buie has been given enormous funds at public expense to testify in this trial," Ellis said.

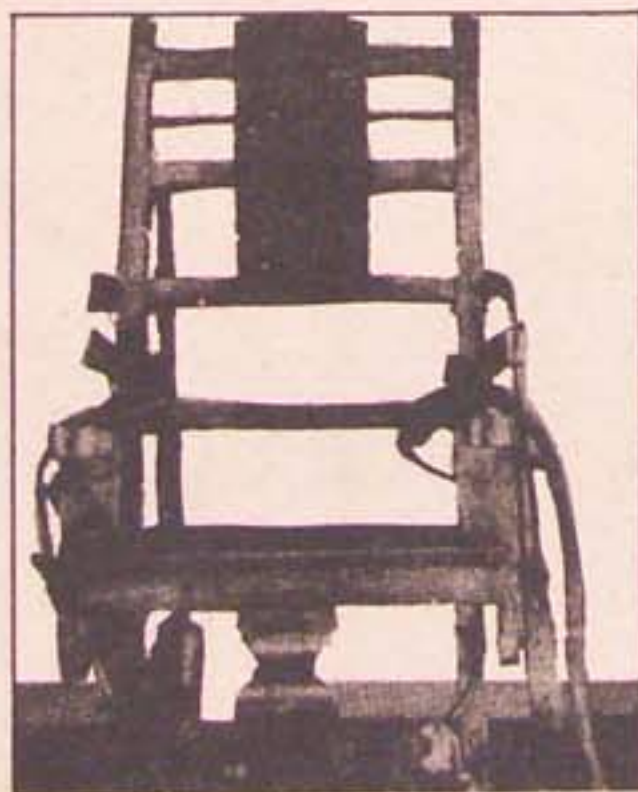
The BPP attorney noted that an eyewitness who testified in the first trial named Buie as Smith's killer. Why, Ellis asked, didn't

Black Man Fights Death Sentence In Arkansas

(Grady, Ark.) - "If you do not believe in the death penalty, but do nothing about it, you are disassociating yourself in the worst way."

In a moving letter recently received by THE BLACK PANTHER, Warren E. Sumlin, Sr., Bay Area Black man now on death row in Arkansas State Prison for a crime he did not commit, explains the circumstances leading to his false murder conviction and asks for funds so that he might continue to appeal his case.

In August, 1977, Sumlin was arrested in Magnolia, Arkansas, where he had moved several months earlier from his hometown, Oakland, California. Arkansas authorities told Sumlin he was being held on request from



the state of California.

"Even though my arrest was illegal and the request by California without any substantial basis," Sumlin writes, "I re-

CONTINUED ON PAGE 6

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